

M/s Shri Jai Balaji Rolling Mills Limited v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 3 November 2025 · Writ-C No. 53257 of 2012 · **Writ dismissed for want of prosecution**

HEADNOTE

Writ attacking an additional-security demand against a pre-payment-meter consumer, and clause 4.20(l) of the Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003, dismissed for want of prosecution when none appeared at a listing of oldest pending cases. The Court did not decide the security or vires questions.

FACTUAL SUMMARY

The petitioner rolling mill opted for a pre-payment meter. By communication dated 8 May 2012 the distribution licensee demanded additional security. The mill challenged that demand as barred by section 47(5) of the Electricity Act, 2003, attacked clause 4.20(l) of the Electricity Supply Code, 2005 as ultra vires, and said section 181(2)(v) regulations had not been framed. In 2012 the Court stayed the demand on an undertaking and tagged similar pending writs. In 2025 the matter was listed among the Court's oldest pending cases.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

want of prosecution

HOLDING

Listed among the High Court's oldest pending cases for priority hearing, the writ was dismissed for want of prosecution as none appeared to press it. The challenge to the additional-security demand and to clause 4.20 of the Supply Code was not decided. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY UNDER SECTION 47(2) OF THE ELECTRICITY ACT, 2003 MAY BE DEMANDED FROM A CONSUMER WHO HAS OPTED FOR A PRE-PAYMENT METER, IN VIEW OF SECTION 47(5)

Raised in 2012; never decided on merits

NOT DECIDED — WHETHER CLAUSE 4.20(L) OF THE ELECTRICITY SUPPLY CODE, 2005 IS ULTRA VIRES SECTION 47(5) OF THE ELECTRICITY ACT, 2003

Raised by the petitioner; not decided

NOT DECIDED — WHETHER SECURITY REGULATIONS UNDER SECTION 181(2)(V) HAD BEEN FRAMED, AND THE OVERRIDING EFFECT OF SECTION 174

Raised by the petitioner; not decided